

The Damodar Valley Corporation rules, 1948

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Union of India - Act

The Damodar Valley Corporation rules, 1948

UNION OF INDIA

India

The Damodar Valley Corporation rules, 1948

Rule THE-DAMODAR-VALLEY-CORPORATION-RULES-1948 of 1948

Published on 23 April 1948

Commenced on 23 April 1948

[This is the version of this document from 23 April 1948.]

[Note: The original publication document is not available and this content could not be verified.]

The Damodar Valley Corporation rules, 1948

Published vide Notification Gazette of India, 1948, Part 1, Section 1, P. 482.

No. DW III-A-4(7)-Dam, dated the 23rd April, 1948. - In exercise of the powers conferred by Section 59 of the Damodar Valley Corporation Act, 1948, the Central Government is pleased to make the following rules :

Salaries And Conditions of Service

1.

These rules may be called the Damodar Valley Corporation Rules, 1948.

2.

The Chairman, Members, Secretary and the Financial Adviser of the Corporation shall be appointed for such term not exceeding five years as the Central Government may think fit and shall be eligible for reappointment.

3.

The Chairman or a Member, may resign his office by giving three months notice in writing to the Central Government.

4.

The Chairman, Members, Secretary and the Financial Adviser shall draw such salary as may be determined by the Central Government in each case.

5.

[* * *]

6.

The Chairman, Member, secretary and the Financial Adviser shall be entitled to leave and leave salary under the model leave terms which may from time to time be applicable to Central Government servants engaged on contract on similar salaries.

7.

The Chairman, Member, Secretary and the Financial Adviser shall be entitled to travelling allowances for journeys performed in the service of the Corporation on the scale provided for in the rules supplementary to the Fundamental Rules applicable to the class of officers to which the Central Government may declare them to correspond in status.

7A.

The other conditions of service of the Chairman, Members, Secretary and the Financial Adviser, if they are not Government servants shall be such as may be determined by the Central Government in each case.

8.

Notwithstanding anything in rules 1 to 7-A of these rules the pay, allowances and other conditions of service of the Chairman, Members, Secretary and the Financial Adviser, if he is a person already in the service of the Government, shall be such as may be determined by the Central Government in each individual case.

9.

(1)

The Chairman, the Members, the Secretary and the Financial Adviser who are not Government servants will be entitled to the benefit of the Contributory Provident Fund of the Corporation to which the Corporation shall, contribute an amount equal to the contribution paid by the subscriber, subject to a maximum of 6 1/4 per cent. up to the 31st August, 1957 and of 8 1/3 per cent. thereafter. The Contributory Provident Fund Rules (Damodar Valley Corporation) made under Section 60 of the Damodar Valley Corporation Act, 1948, shall, so far as may be, apply in relation to the Chairman, the Member, the Secretary and the Financial Adviser who are subscribers to the Fund as they apply in relation to the officers and servants of the Corporation, subject to the condition that the powers exercisable by the Corporation to grant advances from the Fund under rule 12 and to direct deductions from the account standing to the credit of a subscriber in the Fund under rule 19 of the said rule shall be exercised by the Central Government.

(2)

The benefits of the Contributory Provident Fund of the Corporation shall not be admissible to re-employed personnel who are in receipt of any retirement benefits from the Government in the form of pension or Contributory Provident Fund. They may, however, be permitted to join the Fund and contribute to it but shall not be eligible to the Corporation's contribution.

10.

The Central Government may terminate the services of the Secretary or the Financial Adviser at any time without giving any reason therefor by giving three months notice.

11.

The Secretary or the Financial Adviser may resign his office at any time by giving three months notice in writing to the Central Government.

Function And Duties Of The Financial Adviser

12.

The Financial Adviser shall advise the Corporation on all matters relating to revenue and expenditure.

13.

The Financial Adviser shall have the right to attend every meeting of the Corporation but shall not have the right to vote. He shall also have the right to refer to the Corporation any matter which in his opinion ought to be brought to its notice.

14.

The Financial Adviser shall be responsible for the manner in which (0 annual and other financial statements are

complied, and (ii) the accounts of the Corporation are maintained and made available to audit.

15.

The Financial Adviser may, with the approval of the Corporation and by order in writing, direct that any power or duty which under these rules is conferred or imposed upon him shall, under such conditions, if any, as may be specified by him, be performed or discharged by an officer subordinate to him.

Budget

16.

Budget Estimates.

-The budget estimates of the Corporation for each financial year shall be prepared and presented to the Corporation in the form prescribed in Annexure I to rules with such additional information as may be required by the Corporation from time to time.

17.

The budget shall be authenticated by affixing the common seal of the Corporation.

18.

If, in respect of any financial year, expenditure over and above the amount provided for in the budget becomes necessary, a supplementary statement shall be prepared and laid before the Corporation showing the estimated amount of expenditure and shall be authenticated in the same manner as the annual budget.

Account

19.

All moneys received by the Corporation on account of its revenue receipts, loans or advances due to it, shall be remitted in full into the bank. On no account shall any money so collected be utilised for making any payment relating to the Corporation.

20.

The Corporation shall at all times maintain complete and accurate books of accounts.

21.

In the maintenance of accounts and the classification of charges, the object served by the expenditure rather than the agency incurring the expenditure should be the guiding principle. Subject to this general requirement, the accounts shall be maintained under the heads prescribed in Annexure I for the budget of the Corporation.

22.

A consolidated account of the Corporation shall be prepared after obtaining accounts from the disbursing officers.

23.

The accounts of each month shall be made up to the end of the month by the various drawing officers of the Corporation and a consolidated account of the Corporation as a whole shall be prepared and placed before the Corporation at the end of the following with such detailed memoranda as may be required by the Corporation from time to time.

24.

Subsidiary accounts indicating the unit costs shall be maintained and presented to the corporation simultaneously with the accounts for each month.

25.

Within six months of the end of each financial year, the annual accounts prepared in the forms prescribed in Annexure II to these rules, showing the financial results of irrigation, electricity and flood control schemes with such subsidiary accounts as may be necessary, shall be placed before the Corporation, and, after the accounts have been duly passed, communicated to the participating Government and the Audit Officer.

26.

Initial Accounts for stores including materials on the site of works, and tools and plant (including special tools and plant) shall be, maintained in accordance with such instructions as may, from time to time, be issued by the Corporation.

27.

A physical verification of stores and tools and plant shall be made by an officer who is not the custodian thereof. The results of the verification together with the orders of the Corporation for shortages and excesses shall be communicated to the Audit Officer.

Audit

28.

The accounts of the Corporation shall be audited by an officer appointed by the Comptroller and Auditor General of India and under his direction and control. A statement of the results of audit for each month shall be presented to the Corporation.

29.

The Audit Officer shall be supplied with copies of all contracts and other orders involving revenue or expenditure of the Corporation duly authenticated by an officer of the Corporation who is competent to enter into the contract or to issue the order.

30.

The Audit Officer shall have access to all papers, books, records, files and accounts at all reasonable times.

31.

The Audit Officers shall certify to the correctness of the Annual Accounts prepared by the Corporation and append to the certificate an audit report. The annual accounts so certified and the audit report shall, after countersignature by the Comptroller and Auditor General, be submitted with three additional copies to the President. One copy shall be retained by the Central Government and one copy each shall be sent to the other two participating Governments. The Audit Report shall be printed along with the Annual Report and Annual Accounts.

32.

After the accounts are audited no correction shall be made therein without reference to the Audit Officer.

33.

The Audit Officer shall be consulted before any modification is made in any form in which accounts are maintained
Annexure I

The Damodar Valley Corporation

Note. - The Corporation may open such suitable detailed heads as may be considered necessary.

Budget For 19 - 19

Part I ? Expenditure On Capital Account

1.

Power Generation, Transmission and Distribution-
Rs.

(a) Hydro-Electric Schemes :

(1) Generation

(2) Transmission

(3) Distribution

(b) Thermal Schemes :

(1) Generation

(2) Transmission

(3) Distribution

Add- Overhead and General Charges

Deduct- Receipts from sale of power :

(a) High tension

(b) Low tension

Power

2.

Irrigation, Water Supply and Drainage-

(1) Irrigation

(2) Water supply

(3) Drainage

Add- Overhead and General Charges

Deduct- Receipts and Recoveries :

(a) Betterment levy (Section 41)

- (b) Water taxes
- (c) Miscellaneous

Irrigation

3.

Flood Control-

- (1) Scheme in Damodar River
 - (2) Scheme in Hooghly River
 - (3) Navigation :
 - (a) Scheme in Damodar
 - (b) Improvements in Calcutta Port
- Add- Overhead and General Charges

Flood Control

4.

Overhead and General Charges-

- (a) General Administration expenses :
 - (1) corporation expenses
 - (2) Secretary's Office
 - (3) Financial Adviser's Officer
 - (4) Contribution to Employees' Provident Fund
- (b) Stores and workshops
- (c) General Development expenses ;
 - (1) Afforestation
 - (2) Soil conservation
 - (3) Use of lands
 - (4) Resettlement of displaced population
 - (5) Agricultural development
 - (6) Industrial Development
 - (7) Experimental and Research Stations
 - (8) Public Health and Sanitation
 - (9) Economic and Social Welfare

(d) Other General Charges :

- (1) Interest
- (2) Depreciation
- (3) Taxes
- (4) Audit Charges

Total- Overhead and General Charges

Deduct- Proportionate charges transferred to-

- (1) Irrigation
- (2) Power

(3) Flood Control

Net expenditure on Capital Account :

(1) Irrigation

(2) Power

(3) Flood Control

Carried over to part II

Part II ? Allocation Of Capital Expenditure Between Governments

(A)

for the year

Estimated Expenditure brought forward from Part I

Due from-

Rs.

Rs.

Irrigation

(a) Central Government -

(i) For Power

(ii) For Flood Control

Power

(b) West Bengal -

(i) For Power

(ii) For Flood Control

(iii) For Irrigation

Flood Control

(c) Bihar Government -

(i) For Power

(ii) For Irrigation

(B)

Progressive Figures up to end of 19 B/F Form Part II

Due from

To end of previous year ?Actuals?

During year ?Budget?

Total to end of year

Received from

To end of previous year ?Actual?

During year ?Actuals?

Total to end of year

Rs.

Rs.

Rs.

Rs.

Rs.

Rs.

(a) Central Government -

(a) Central Government -

(i) For Power

..

..

..

(i) For Power

..

..

..

(ii) For flood Control

..

..

..

(ii) For flood Control

..

..

..

(b) West Bengal-

(b) West Bengal-

(i) For Power

..

..

..

(i) For Power

..

..

..

(ii) for Flood Control

..

..

..

(ii) for Flood Control

..

..

..

(iii) For Irrigation

..

..

..

(iii) For Irrigation

..

..

..

(c) Bihar-

(c) Bihar-

(i) For power

..

..

..

(i) For power

..

..

..
(ii) For Irrigation

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..
(ii) For Irrigation

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.....

Part II ? (C) { |

| -
Balance Payable by -
(a) Central Government -
Rs.

| -
| (i) For power
..
(ii) For Flood Control
..

| -
| (b) West Bengal-
..
(i) for Power
..

| -
| (ii) For Irrigation
..
(iii) For Blood control
..

| -
| (c) Bihar-
..
(i) For Power
..
-
(ii) For Irrigation

| ..

|}

Part III ? Revenue Account

Expenditure

Income

1. POWER

Rs.

Rs.

Generation-

Hydro-Electric

...

(1) Sale of Power-

(a)

Industrial

...

Thermal

...

(b)

Agricultural

...

(c)

Municipal

...

Transmission Lines and Receiving Station

(d)

Commercial

...

(e)

Domestic

...

Hydro-Electric

...

(f)

Miscellaneous

...

Thermal

...

(2) Other Revenue

...

Distribution Lines and Station-

Hydro-Electric

...

Thermal

...

L.T. Distribution System-

Add General

Expenses

...

Depreciation

Expenses

...

Imprest on capital

Net Revenue from Power C/O to

Part IV

...

2. IRRIGATION

Rs.

Rs.

Miscellaneous Expenses-

Betterment levy

...

Dams

...

Miscellaneous Revenue

...

Canals

...

Distributaries

...

Administrative

expenses

...

Depreciation

Interest on Capital

...

Net Revenue

from Irrigation C/O to Part IV

...

3.

FLOOD CONTROL

Maintenance Expenses-

Miscellaneous Receipts-

Scheme in

Damodar

...

Net Expenses Carried over to part

IV

...

Scheme in

Hooghly

...

Scheme in

Calcutta Port

...

General

Expenses

...

_____.
Part IV ? Disposal Of Profits And Deficits

Expenditure

Revenue

Rs.

Rs.

From part III

..

From Part III

..

Net expenses on Flood Control

Corporation tax

..

Net revenue from Power

..

Net Revenue from Irrigation

..

_____.
_____.

_____.

Net profit payable to -

Net deficit recoverable-

(a) Central

Government -

On account

of Flood Control-

For Power

...

From (a) Central Government

(b) West

Bengal -

From (b) West Bengal

..

For Power

For

Irrigation

_____.
_____.

_____.

Part V ? Budget Summary

Brought

Forward from

Balance payable to year ending 31-3-3

Part II (C)

Part IV

Net

By

By

To

By
To
(a) Central Government-
(i) For
Power(ii) For Flood Control
(b) West Bengal
(i) For
Power(ii) For Irrigation(iii) For Flood Control
(c) Bihar-
(i) For
Power(ii) For Irrigation
Total

...
...
...

Financial Adviser
Chairman
Common Seal of
Member
D. V. C.
Member
Account Officer.
Secretary
Annexure li
The Damodare Valley Corporation
Note.- The Corporation may open such suitable detailed heads as may be considered necessary.
I.- Balance-Sheet As On 31st March, 19.
Liabilities
Assets
Rs.
Rs.
Rs.
Central Government-
Irrigation
...
...
Power
...
...
Flood Control
...
...
Power
...
...

West Bengal Government-
Flood Control-
Irrigation

...

...

Flood Control Expenses (Revenue A/C)

...

Power

...

...

Flood Control

...

...

...

Tools and Plant

...

Bihar Government-
Material in Stock

...

Power

...

...

Irrigation

...

...

...

Sundry debtors for

...

Central Government
Advance
Received

...

...

...

Current supplied

...

Revenue Account-
Other debtors

...

Power

...

...

Irrigation

...

...

...

Other items (to be specified)

...

Sundry Creditors-

Cash at Bank

Security

Deposits from contractors...

...

Deposits

from Consumer

...

Cash in hand

Other

Creditors

...

...

Depreciation Fund-

Renewals and

replacement Reserve Fund

...

Other

Reserve Funds (to be specified)

...

Employees' Provident Fund

...

...

Other item (to be specified)

...

..._____

_____...

_____...

II.- Capital Account for the Year Ending 31st March, 19

To end of previous year

During year

To end of year

To end of previous year

During year

To end of year

Rs.

Rs.

Rs.

Rs.

Rs.

Rs.

A. - IRRIGATION WATER-SUPPLY AND DRAINAGE-

1. Irrigation-

Dams

...

...

...

...

West Bengal Government

...

...

...

...

Canals

...

...

...

...

Distributaries

...

...

...

...

Bihar Government

...

...

...

...

2. Water Supply-

3. Drainage-

Add-Proportionate

overhead and general charges...

...

...

...

...

...

...

Deduct-Receipts

and Recoveries

(a) water taxes

...

(b) Betterment levy

...

(c) Miscellaneous

...

...

...

...

...

...

...

Total-Irrigation

expenditure C/O To balance-sheet

...

...

...

TotalC/O To balance-sheet

...

...

...

B.- [Power] -

Hydro-Electric Schemes as-

1. Generation

...

Central

Government

...

...

...

...

2. Transmission

...

West

Bengal Government

...

...

...

3. Distribution

...

Thermal

Schemes-

1. Generation

...

...

...

...

2. Transmission

...

...

...

...

Bihar

Government

...

...

...

...

3. Distribution

...

...

...

...

Add-Proportionate

overhead and general charges

...

...

...

...

Deduct-Receipts
and Recoveries

...

...

...

...

Total? Power expenditure C/O...

...

...

...

Total
C/O to Balance-sheet

...

...

To Balance-Sheet

C. - [Flood

Control]-

1. Schemes in Damodar Rivar

...

...

...

Central

Government

2. Schemes in Hooghly River

...

...

...

West

Bengal Government

3. Navigation-

...

...

...

(a) Schemes in Damodar River

...

...

...

(b) Improvement in Calcutta Port

...

...

...

Add-Proportionate
overhead and general charges

...

...

...

...

Deduct-Receipts
and Recoveries

...

...

...

...

Total-Net expenditure C/O to balance-sheet

...

...

...

...

...

III.Revenue Account for the Year Ending 31st March, 19

Expenditure

Income

1. POWER

Rs.

Rs.

Generation-

Sale of Power-

Hydro-Electric

..

Industrial

..

..

Thermal

..

Agricultural

Transmission Lines and Receiving Stations-

Municipal

..

..

Commercial

..

..

Hydro-Electric

..

Domestic

..

..

Thermal

..

Miscellaneous

..

..

Distribution Lines and Stations-

Hydro-Electric

..

Thermal

..

L.T. Distribution System-

Other Revenue

..

..

Commercial Expenses

..

General Expenses

..

Depreciation and Other Reserve

Funds

Interest on capital

Net Revenue from Power C/O to

Balance-sheet

..

.._____

.._____

2. IRRIGATION

Rs.

Rs.

Maintenance Expenses-

Dams

..

Canals

..

Betterment Levy

..

Distribution

..

Miscellaneous Revenues

..

General Expenses

..

Depreciation and other Reserve Funds Interest on

Capital

..

Net Revenue from Irrigation C/O to Balance-sheet

..

.._____

.._____

3. FLOOD CONTROL

Rs.

Rs.

Maintenance Expenses-

Miscellaneous Receipts-

Scheme in Damodar

..

Net Expenses Carried

over to balance-sheet

..

Scheme in Hooghly

..

Scheme in Calcutta

Port

..

Scheme in Expenses

..

.._____

.._____

IV. Statement Showing Overhead and General Expenses for the Year Ending 31st March, 19 and their Allocation
Expenses

Allocation

Rs.

Rs.

(a) General Administration Expenses-

Capital A/C-

(1) Corporation expenses

..

..

Irrigation

..

..

(2) Secretary's Office

..

..

Power

..

..

(3) Financial Adviser's Office

..

..

Flood Control

..

..

(4) Contribution to Employee

Provident Fund

..

..

(b) Stores and Workshops Expenses-

Revenue A/C-

(1)

Stores

..

..

Power

..

..

(2) Workshops

..

..

Irrigation

..

..

(c) General Development Expenses-

(1) Afforestation

..

..

(2) Soil conservation

..

..

(3) Use of lands

..

..

(4) Resettlement of displaced
population

..

..

(5) Agricultural development

..

..

(6) Industrial development

..

..

(7) Experimental and Research
Stations

..

..

(8) Public Health and Sanitation

..

..

(9) Economic and Social Welfare

..

..

(a) Other General charges-

(1) Internet

..

(2) Depreciation

..

(3) Taxes

..

(4) Audit charges

..

.._____

.._____

Related AI tags, queries and research notes

Translation